

Intentional Torts (3)

Topics outline

1. Introduction to intentional torts
2. Battery
3. Assault
4. False Imprisonment
5. Defences
6. The tort in *Wilkinson v Downton*
7. The Protection from Harassment Act 1997



6. The tort in *Wilkinson v Downton*

Wilkinson v Downton [1897]

EWHC 1

Facts

- ❑ As a practical joke, D told C that her husband, who had been away on a journey, had been involved in a terrible accident.
- ❑ This caused C immense distress.

Held

- ❑ “The defendant has ... wilfully done an act calculated to cause physical harm to the plaintiff – that is to say, to infringe her legal right to personal safety, and has in fact thereby caused physical harm to her. That proposition without more appears to me to state a good cause of action, there being no justification alleged for the act.”



O (A Child) v Rhodes [2015] UKSC 32

Facts:

- ❑ D, a celebrity, wanted to publish an autobiography detailing sexual abuse he suffered as a child.
- ❑ D's ex-wife worried that the publication of the book would harm their son, C, who was psychologically vulnerable.
- ❑ On C's behalf, a claim was brought against D under the tort in *Wilkinson v Downton*.
- ❑ The Court of Appeal granted C an injunction.



O (A Child) v Rhodes [2015] UKSC 32

‘Wilful infringement of another’s right to personal safety’

- A. Conduct element: ‘words or conduct directed at the claimant for which there is no justification or excuse’
- B. Mental element: ‘an intention to cause at least severe mental or emotional distress’
- C. Consequence element: ‘physical harm or recognised psychiatric illness’



A. Conduct element

‘Words or conduct directed to the claimant for which there is no justification or excuse’

- ❑ The CoA had thought the book was ‘conduct directed to C’ because the book was dedicated to him. The Supreme Court disagreed: the book was directed to a wide audience.
- ❑ CoA said there was no justification. The Supreme Court disagreed: D had a legitimate interest in telling his story, and the public had an interest in hearing it. This was not ‘gratuitous’.



B. Mental element

‘An intention to cause at least severe mental or emotional distress’

- ☐ D must intend to cause severe distress.
- ☐ An intention to cause psychiatric illness is not necessary.
- ☐ Recklessness will not suffice for intention.
- ☐ Here, there was no intention to cause distress at all.



C. Consequence Element

‘Physical harm or recognised psychiatric illness’

- The majority thought that the tort was only complete where a recognised psychiatric injury occurred. [88]
- Lord Neuberger thought that if the required intention was just causing severe distress, this should be the required consequence too – not recognised psychiatric injury. [119]



O (A Child) v Rhodes [2015] UKSC 32

- “the only proper conclusion is that there is every justification for the publication. A person who has suffered in the way that the father has suffered, and has struggled to cope with the consequences of his suffered in the way that he has struggled, has the right to tell the world about it. And there is a corresponding public interest in others being able to listen to his life story in all its searing detail.” [76]
- “His writing contains dark descriptions of emotional hell, self-hatred and rage ... The reader gains an insight into his pain but also his resilience and achievements. To lighten the darkness would reduce its effect.” [78]



7. The Protection from Harassment Act 1997

PfHA 1997

1.— Prohibition of harassment

- (1) A person must not pursue a course of conduct—
- (a) which amounts to harassment of another, and
 - (b) which he knows or ought to know amounts to harassment of the other.

...

(2) For the purposes of this section ... the person whose course of conduct is in question ought to know that it amounts to or involves harassment of another if a reasonable person in possession of the same information would think the course of conduct amounted to or involved harassment of the other.

PfHA 1997

1.— Prohibition of harassment

(3) Subsection (1) ... does not apply to a course of conduct if the person who pursued it shows—

(a) that it was pursued for the purpose of preventing or detecting crime,

(b) that it was pursued under any enactment or rule of law or to comply with any condition or requirement imposed by any person under any enactment, or

(c) that in the particular circumstances the pursuit of the course of conduct was reasonable.

PfHA 1997

3.— Civil remedy

(1) An actual or apprehended breach of section 1(1) may be the subject of a claim in civil proceedings by the person who is or may be the victim of the course of conduct in question.

(2) On such a claim, damages may be awarded for (among other things) any anxiety caused by the harassment and any financial loss resulting from the harassment.

PfHA 1997

7.— Interpretation

(2) References to harassing a person include alarming the person or causing the person distress.

(3) A “course of conduct” must involve ... (a) ... conduct on at least two occasions ...

An objective standard

DPP v Hardy [2008] EWHC 2874 (Admin)

Facts

- ❑ D called a business owner, A, requesting to be put through to B. A refused to put the call through to B.
- ❑ D thought this was unreasonable. So D kept calling back for over 4 hours, demanding to be put through to B.

Held

- ❑ S.1(2) says a course of conduct is harassment “if a reasonable person” would think it was.
- ❑ So, D’s belief that he was acting reasonably was no defence – the test is objective not subjective.

Harassment of 'another'

Levi v Bates [2015] EWCA Civ 206

Facts

- ❑ C2 sued D for publishing a number of articles about C1, her husband.

Held

- ❑ The Act did not require D to target C specifically, although *someone* does have to be 'targeted'.
- ❑ C must be the 'victim' of the harassment (s.3(1)) and it must be foreseeable that C will be harassed by the conduct (s.1(1)(b)).
- ❑ Here, C1 was the 'target' – but it C2 was still a victim, and it was foreseeable she would be harassed by the conduct too.



Harassment v annoyance

Majrowski v Guy's and St Thomas's NHS Trust [2006] UKHL 34

- “[C]ourts will have in mind that irritations, annoyances, even a measure of upset, arise at times in everybody's day-to-day dealings with other people. Courts are well able to recognise the boundary between conduct which is unattractive, even unreasonable, and conduct which is oppressive and unacceptable.” (Lord Nicholls, [30])
- “A great deal is left to the wisdom of the courts to draw sensible lines between the ordinary banter and badinage of life and genuinely offensive and unacceptable behaviour” (Lady Hale, [66])



British Gas

Harassment v annoyance

Ferguson v British Gas [2009] EWCA Civ 46

Facts

- ❑ C moved gas suppliers.
- ❑ For five months, D sent (via automatically generated mail) a stream of threatening letters.
- ❑ “It is one of the glories of this country that every now and then one of its citizens is prepared to take a stand against the big battalions of government or industry. Such a person is Lisa Ferguson ...” (Jacob LJ, [1])



British Gas

Harassment v annoyance

Ferguson v British Gas [2009] EWCA Civ 46

- Even for a civil claim under section 3 PfHA, the conduct must be “of such gravity as to justify the sanctions of the criminal law” (see *Sunderland v Conn* [2008] EWCA Civ 148, Gage LJ, [12])
- “the only real difference between the crime of s.2 and the tort of s.3 is standard of proof” (Jacob LJ, [17])



British Gas

Harassment v annoyance

Ferguson v British Gas [2009] EWCA Civ 46

“I think, at the very least, that it is strongly arguable that [British Gas’ conduct does satisfy the test]. I ask myself whether ... the persistent and continued conduct here pleaded was on the wrong side of the line, as amounting to ‘oppressive and unacceptable conduct’. I am bound to say that I think they could. ... What British Gas was threatening was undoubtedly serious.”

(Jacob LJ, [19-20])



British Gas

Harassment v annoyance

Ferguson v British Gas [2009] EWCA Civ 46

“[A] real person is unlikely to take comfort from knowing that the claims and threats are unjustified or that they were sent by a computer system: that will not necessarily allay the fear that the threats will not be carried out. How is a consumer such as Ms Ferguson to know whether or not, for instance, a threat such as ‘we will tell a credit reference agency in the next 10 days that you have not paid’ ... will not be carried out by the same computer system which sent the unjustified letter and all its predecessor bills and threats?”

(Jacob LJ, [19-22])



Harassment v annoyance

“To be sure, a vague test has its advantages. It avoids under-inclusion. It allows judges to take into account unusual circumstances and to adjust the standard to different contexts. But that is an argument against clarity in all tests. It is an argument for an unpredictable legal system. To obey the law, we need to know what it is. This is all-the-more true for prohibitions. If the state tells us not to do something, on pain of punishment, we are at the very least entitled to know what we cannot do. As regards harassment, I am not sure we do.”

(L Schmilovits, ‘Harassment: an elephant in the corner’ (2019) 135 *LQR* 27)

Harassment and freedom of expression



Sube v News Group Newspapers Ltd [2020] EWHC 1125

Facts

- ❑ ‘Jobless dad whines about £15k-a-year council home—and turns down five bedroom house’

Held

- ❑ Not harassment
- ❑ “nothing short of conscious or negligent abuse of media freedom will justify a finding of harassment”

‘Course of conduct’

- ❑ S.7(3) says “a ‘course of conduct’ must involve conduct on at least two occasions”
- ❑ A single publication online can amount to a ‘course of conduct’ where “such publications will inevitably come to [C’s] attention on more than one occasion and on each occasion cause them alarm and distress” (*Law Society v Kordowski* [2011] EWHC 3185, [61])

‘Course of conduct’

Iqbal v Dean Manson Solicitors [2011] EWCA Civ 123

Facts

- D sent three letters to C, a solicitor, questioning C’s ability and the propriety of C acting for a client.

Held

- Even though one of the letters taken alone might not amount to harassment, taken together they did.

‘Course of conduct’

Iqbal v Dean Manson Solicitors [2011] EWCA Civ 123

“The course of conduct cannot be reduced to or deconstructed into the individual acts, taken solely one by one. So it is with a course of communications such as letters. A first letter, by itself, may appear innocent and may even cause no alarm, or at most a slight unease. However, in the light of subsequent letters, that first letter may be seen as part of a campaign of harassment.”

(Rix LJ, [45])

Defences



Hayes v Willoughby [2013] UKSC 17

Facts

- ❑ D carried out an extended campaign to convince authorities to take action against C for fraud and embezzlement.
- ❑ An investigation found no basis in the allegations, however D continued with his campaign.

Defences



Hayes v Willoughby [2013] UKSC 17

Held

- ❑ Section 1(3)(a) provides a defence where the course of conduct is “pursued for the purpose of preventing or detecting crime”.
- ❑ But that conduct must be rational.
- ❑ Once the investigation found no basis for the allegations, D’s campaign against C became irrational.
- ❑ D was liable for harassment.

Defences



Hayes v Willoughby [2013] UKSC 17 (per Lord Sumption)

- ❑ The test under s.1(3)(a) is not 'objective' reasonableness: if it were, "it would have been unnecessary because it would have been subsumed in the general defence of reasonableness provided by section 1(3)(c)." [11]
- ❑ Nor is the test wholly subjective: "A large proportion [of harassers are] obsessives and cranks, who will commonly believe themselves to be entitled to act as they do" [12]
- ❑ The test is partly subjective and partly objective: rationality.

Defences



Hayes v Willoughby [2013] UKSC 17 (per Lord Sumption)

“after June 2007 Mr Willoughby’s vendetta against Mr Hayes was more than objectively unreasonable. It was irrational. His persistence was obsessive. He was no longer guided by any objective assessment of the evidence of Mr Hayes’s supposed criminality and there was no longer any logical connection between his supposed purpose and his acts. ...He was proceeding with his campaign for its own sake, regardless of the prospect of detecting any crimes of Mr Hayes.” [16]